IN THE NATIONAL COMPANY LAW TRIBUNAL

NEW DELHI BENCH (COURT- III)

CA (CAA) -116/(ND)/2022

&

CA-30/2023

IN THE MATTER OF SCHEME OF ARRANGEMENT:

BETWEEN

CARGO SERVICE CENTER SKILL & TRAINING ACADEMY PRIVATE LIMITED

…….TRANSFEROR COMPANY

(APPLICANT COMPANY-1)

AND

DELHI CARGO SERVICE CENTER PRIVATE LIMITED

……TRANSFEREE COMPANY

(APPLICANT COMPANY – 2)

Order Delivered on: 03.02.2023

SECTION: 230 – 232 of the Companies Act, 2013

Coram:

SHRI BACHU VENKAT BALARAM DAS, HON'BLE MEMBER (JUDICIAL)
SHRI ATUL CHATURVEDI (TECHNICAL)

For Applicant: Mr. Niraj Kumar, Mr. Pranav Vyas, Mr. Satendra K Rai, Mr. Pravar Veer Misra, Advocates.

ORDER

PER: ATUL CHATURVEDI, MEMBER (TECHNICAL)

1. This joint application is filed under Rule 11 and 15 of the National Company Law Tribunal on the behalf of the Applicants Companies seeking modification of the Order Dated 2nd January, 2023 and seeking extension of time.

2. It is submitted by Ld. Counsel appearing for the Applicant that this Tribunal passed an order on 01.01.2023 in the First Motion application i.e. CA (CAA)- 116/(ND)/2022 wherein the following directions were passed.

   i. To pass an order for dispensing with the requirement of holding the meetings of the shareholders of both, the Transferor Company and the Transferee Company;

   ii. To pass necessary orders and directions for convening the meetings of the secured creditors of the transferor Company and the Transferee Company;

   iii. To pass necessary orders and directions for convening the meetings of the secured and unsecured creditors of the Transferor Company and the Transferee Company;

3. Ld. Counsel has submitted that some of the directions which are required to be passed under the Companies (Compromises, Arrangements and Amalgamations) Rules, 2016 were inadvertently missing. These directions which are required to be passed are mentioned hereunder:

   i. Name of Chairperson in respect of the meetings directed to be convened in terms of the Order and terms of

appointment/remuneration (As required under Rule 5(c) of the CA Rules);

ii. Name of Scrutinizer in respect of the meetings directed to be convened in terms of the and terms of appointment/remuneration (As required under Rule 5(c) of the CA Rules);

iii. Newspapers in which the notice of meetings is to be issued (as per Rule 7 of the CA Rules)

iv. Directions in respect of procedure to be adopted at meetings and manner of conducting voting at the meetings (as provided under Rule 5(d) of the CA Rules)

v. Issuance of notice on governmental authorities and/or sectoral regulators (as provided under Rule 5(1) of the CA Rules)

vi. Time within which chairperson is required to report the result of the meeting to the Hon'ble Tribunal (as provided under Rule 5(h)

4. The Ld. Counsel has submitted that as per the provisions of (Compromises, Arrangements and Amalgamations) rules, 2016, abovementioned orders are required to be passed. Having considered the submissions of the Ld. Counsel and perusing the application we pass the following directions:-

1. Mr. Siddharth Banwat (CA) (Mob No. 9096039986) shall act as the Chairperson,

2. Mr. Anil Bajaj (CA) (Mob. No. 9999984725) shall act as a scrutinizer. Scrutinizer shall ensure that the registers are properly

maintained. The fee of the Chairperson for the aforesaid meetings shall be Rs. 65,000/- and fee of Scrutinizer would be Rs. 50,000/-. The Chairpersons will file their reports within 2 weeks from the date of holding of the above said meetings.

I. With respect to publication of notice in newspapers, we direct that the Applicant Company/ Transferor Company shall publish advertisement with a gap of at least 30 clear days before the aforesaid meetings, indicating the day, date and the place and time as aforesaid, to be published in the **"Business Standard"** English Edition – Delhi and "**Jansatta"** Hindi Edition - Delhi stating the copies of Scheme of Amalgamation, the Explanatory Statement required to be furnished pursuant to Section 230 of the Companies Act, 2013 and the form of proxy shall be provided free of charge at the registered office of the Applicant Company.

II. The quorum of the meeting of secured creditors would be 4 and that of unsecured creditors of the Applicant Company shall be 48 and all of them shall remain present in person in the meeting.

IV. In case the quorum as noted above for the above meeting of the Applicant Company is not complete at the meetings, then the meetings shall be adjourned by half an hour, and thereafter the persons present and voting shall be deemed to constitute the quorum. The Chairperson and appointed herein along with Scrutinizer shall ensure that the proxy registers are properly maintained. However, every endeavour should be

made by the applicant company to attain at least the quorum fixed, if not more in relation to approval of the scheme.

V. The Applicant Company shall individually send notice to concerned Regional Director, Income Tax Authorities, Registrar of Companies NCT Delhi &Haryana, Official Liquidator, SEBI as well as other sectoral regulators who may have significant bearing on the operations of the applicant company or the Scheme per se along with copy of required documents and disclosures required under the provisions of Companies Act, 2013 read with Companies (Compromises, Arrangements, Amalgamations) Rules, 2016.

VI. Voting shall be allowed on the proposed Scheme by voting in person, The Chairperson shall as afore stated be responsible to report the result of the meeting within a period of 3 days of the conclusion of the meeting with details of voting on the proposed scheme.

5. The Applicant have also prayed for modifying the date of meeting on 16.02.2023 and 17.02.2023 for holding the meeting of secured and unsecured creditors of the Applicant companies to any other date. We accordingly direct that the meeting of the secured creditors of the Transferor Company and Transferee Company shall be held at 11:00 AM on 21.03.2023.
6. We further direct the meeting of the unsecured creditors of the Applicant Company shall be held at 11:00 AM on 23.03.2023.
7. This order shall be read as part of the order dated 02.01.2023 except with regards to the dates of the meeting of Shareholders, Secured

Creditors and Unsecured Creditors which will be 21.03.2023 and 23.03.2023.

8. Application CA-30/2023 stands **allowed**.

SD/-

(ATUL CHATURVEDI)
(MEMBER TECHNICAL)

SD/-

(BACHU VENKAT BALARAM DAS)
(MEMBER JUDICIAL)